

MIDWEST CONTAINER POOLS

Terms and Conditions of Sale

Effective August 2026 · Version 2.0

These Terms and Conditions of Sale (the “Terms”) govern the purchase of products from Midwest Container Pools (“MCP,” “the Company,” “we,” “us,” or “our”), located at 22143 219th Street, Leavenworth, KS 66048, whether ordered through our website at midwestcontainerpools.com (the “Website”) or otherwise. By placing an order, clicking to accept these Terms, submitting a deposit, or purchasing any product, you (the “Buyer,” “you,” or “your”) agree to be bound by these Terms.

Key Terms at a Glance

Seller	Midwest Container Pools, Leavenworth, Kansas
Products	Insulated, fiberglass-lined container pools (20ft and 40ft configurations) and related add-ons
Deposit	Non-refundable, in the amount shown in your order or at checkout
Balance	Due in full before the pool is shipped or released
Delivery	Coordinated nationwide through independent third-party carriers; charges quoted separately; Buyer handles placement
Installation	Buyer's responsibility, including site preparation and permits
Warranty	Five (5) year limited structural warranty; equipment covered under its manufacturer warranties
Media & Data	MCP may use images and video of the pool for marketing and owns order and transaction data (Part V)
Governing Law	State of Kansas

This summary is provided for convenience only. The full Terms below are controlling.

Part I — The Agreement

Article 1. Acceptance and Eligibility

You must be at least 18 years of age and able to enter into a binding contract. If you order on behalf of a company or other entity, you represent that you are authorized to bind it, and “Buyer” refers to that entity. Your electronic acceptance, including clicking “I Agree,” “Order Now,” “Submit Order,” or a similar control, has the same legal effect as a handwritten signature and creates a binding contract. If you do not agree, do not place an order.

Article 2. Definitions

“Product” or “Pool” means the MCP container pool and any add-ons, upgrades, or accessories in your order.

“Order” means your submitted request to purchase a Product, including all configuration selections and Buyer information.

“Deposit” means the non-refundable payment required to place an Order, in the amount shown in your Order or at checkout.

“Balance” means the total purchase price, plus applicable taxes and approved add-ons, less the Deposit.

Article 3. Relationship to Other Agreements

These Terms apply to all Orders. If Buyer also signs a separate written purchase agreement or invoice with MCP for the same Order, that document is incorporated by reference and these Terms supplement it. In the event of a direct conflict, the signed document controls as to the matter in conflict, and these Terms govern in all other respects.

Part II — Orders, Pricing, and Payment

Article 4. Orders and Order Acceptance

Your submission of an Order is an offer to purchase, subject to acceptance by MCP. MCP may accept or decline any Order, in whole or in part, for any lawful reason, including availability, pricing or description errors, suspected fraud, or inability to verify payment. No Order is binding on MCP until MCP confirms acceptance and the Deposit has cleared. The Website may contain errors relating to price, description, specifications, images, or availability; MCP may correct any such error and cancel or refuse any Order placed on incorrect information, even after submission or confirmation.

Article 5. Pricing and Taxes

Prices are stated on the Website or in your Order and are exclusive of taxes, delivery, offloading, installation, and other third-party costs, unless expressly stated otherwise. Prices may change without notice, except that the price for an accepted Order is the price confirmed at acceptance. Buyer is responsible for all applicable sales, use, and other taxes, and for any duties, tariffs, or fees on any shipment, including international shipment. Where financing is offered, Buyer contracts directly with the third-party lender, and MCP is not a party to and is not responsible for that arrangement.

Article 6. Deposit, Balance, and Non-Payment

A non-refundable Deposit is required to place an Order. Except as expressly provided in Article 12, the Deposit is non-refundable. The Balance is due in full before the Pool is shipped or released for pickup. MCP is not obligated to ship, release, or continue production until payment is received in full. If Buyer fails to pay the Balance when due, MCP may treat the Order as cancelled by Buyer, retain the Deposit and any made-to-order Pool, charge storage fees that accrue after the Pool is ready, and pursue any other available remedy.

Article 7. Custom and Made-to-Order Products; Color Variance

Pools are built to order. Once production has begun, the Order is non-cancellable and all payments, including any custom or add-on charges, are non-refundable. Color, finish, and texture may vary from any on-screen depiction due to monitor settings, lighting, materials, and the manufacturing process. Minor variations in color, dimensions, finish, and appearance are inherent to fiberglass and container construction and are not defects.

Article 8. Payment Disputes and Chargebacks

Buyer agrees to contact MCP to resolve any billing concern before initiating a chargeback or payment dispute. Initiating a chargeback inconsistent with these Terms, including on a non-refundable Deposit or on a Pool for which production has begun, is a breach. Buyer remains responsible for all amounts owed, and MCP may recover the disputed amount together with related fees and reasonable costs of collection, including attorneys' fees.

Part III — Delivery, Offloading, and Installation

Article 9. Manufacturer and Fabricator Role

MCP is a manufacturer and fabricator of container pools. MCP builds and sells the Pool. Except for delivery coordination as described in Article 10, MCP does not perform, and is not responsible for, site preparation, excavation, offloading, craning, rigging, placement, installation, plumbing beyond the Pool's built-in equipment, electrical connection, permitting, or inspection. Any tradespeople or installers MCP may refer are independent contractors, are not agents or employees of MCP, and MCP disclaims all liability for their acts, omissions, pricing, scheduling, or workmanship. Buyer contracts with and pays such parties directly.

Article 10. Delivery and Shipping

MCP coordinates delivery of the Pool nationwide through independent third-party carriers as a convenience to Buyer. Delivery and freight charges are quoted and billed separately unless expressly included in the Order. Each carrier is an independent contractor and is not an agent or employee of MCP. MCP is not liable for any carrier delay, rescheduling, route restriction, access limitation, or damage occurring in transit. Title and risk of loss pass to Buyer upon delivery of the Pool to the Buyer's designated site or upon release for pickup, whichever occurs first. Buyer should inspect the Pool at delivery and note any visible damage on the carrier's delivery documentation; claims for transit damage are pursued through the carrier.

Article 11. Offloading and Site Access

Buyer is solely responsible for providing suitable, safe, and adequate site access and for arranging and paying for all equipment and labor required to offload and position the Pool, including any crane, forklift, or other rigging equipment, and a clear staging area. MCP is not responsible for offloading and is not liable for any property damage, personal injury, delay, redelivery charge, demurrage, detention, or standby fee arising from offloading, site access, or Buyer's failure to be prepared to receive the Pool.

Article 12. Estimated Timelines; Delays

Any production or ship date MCP provides is a good-faith estimate only and is not guaranteed. MCP will use commercially reasonable efforts to meet estimated dates. Estimated dates are automatically extended by the duration of any Force Majeure event described in Article 23. If MCP fails to ship the Pool within fifteen (15) calendar days after the agreed estimated ship date, as extended by any Force Majeure event, Buyer's sole and exclusive remedy is to request a refund of the Deposit for the affected Pool, provided production of that Pool has not begun. This is the only circumstance in which the Deposit is refundable.

Article 13. Installation, Site Preparation, and Permitting

Installation is the sole responsibility of the Buyer. Buyer is responsible for all site preparation, ground leveling, structural support, excavation for in-ground or partially buried configurations, electrical connection, water supply, and drainage, and for engaging qualified, licensed professionals as appropriate. Buyer is solely responsible for obtaining all permits and for compliance with all applicable federal, state, and local laws, building codes, zoning

and setback requirements, homeowner association rules, and pool safety, barrier, fencing, alarm, and anti-entrapment requirements. MCP assumes no responsibility for site conditions, permitting, code compliance, inspections, or the acts or omissions of any installer. Any installation guidance MCP provides is general in nature and does not substitute for professional advice or compliance with local law.

Part IV — Warranties, Risk, and Liability

Article 14. Limited Warranty

MCP warrants the container structure and fiberglass shell against manufacturing defects in materials and workmanship for a period of five (5) years from the date of delivery (the "Limited Warranty"). Buyer's sole and exclusive remedy under the Limited Warranty is, at MCP's option, repair or replacement of the defective portion. Equipment and components, such as the pump, filter, and lighting, are covered under their respective manufacturer warranties and not by MCP. The Limited Warranty is non-transferable unless MCP agrees otherwise in writing.

The Limited Warranty does not cover, and MCP is not responsible for, any damage or defect caused by delivery once risk of loss has passed, offloading, handling, storage, installation, site preparation, maintenance, water chemistry, freezing, ground movement or settling, relocation of the Pool, modification, misuse, neglect, accident, vandalism, acts of nature, or any use not in accordance with MCP's instructions.

Article 15. Disclaimer of Other Warranties

EXCEPT FOR THE EXPRESS LIMITED WARRANTY IN ARTICLE 14, THE PRODUCT IS PROVIDED "AS IS" AND "WITH ALL FAULTS." TO THE FULLEST EXTENT PERMITTED BY LAW, MCP DISCLAIMS ALL OTHER WARRANTIES, WHETHER EXPRESS, IMPLIED, OR STATUTORY, INCLUDING ANY IMPLIED WARRANTY OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, AND NON-INFRINGEMENT. NO ADVICE OR INFORMATION, ORAL OR WRITTEN, CREATES ANY WARRANTY NOT EXPRESSLY STATED IN THESE TERMS.

Article 16. Assumption of Risk; Pool Safety

Buyer acknowledges that pools and water features are inherently dangerous and present risks including drowning, injury, and death, particularly to children. Buyer assumes all such risks and is solely responsible for the safe installation, use, supervision, maintenance, and securing of the Pool, and for compliance with all safety, barrier, and anti-entrapment laws applicable to the Pool's location. MCP is not responsible for injuries or damages arising from the use, misuse, supervision, installation, or condition of the Pool after title and risk of loss have passed to Buyer.

Article 17. Limitation of Liability

TO THE FULLEST EXTENT PERMITTED BY LAW, MCP SHALL NOT BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, EXEMPLARY, OR PUNITIVE DAMAGES, OR FOR ANY LOSS OF PROFITS, REVENUE, USE, OR DATA, ARISING FROM OR RELATING TO THE PRODUCT, THESE TERMS, OR ANY DELIVERY, OFFLOADING, INSTALLATION, OR USE OF THE PRODUCT, WHETHER BASED IN CONTRACT, TORT, STRICT LIABILITY, OR OTHERWISE, EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. MCP'S TOTAL AGGREGATE LIABILITY FOR ALL CLAIMS ARISING FROM OR RELATING TO THE PRODUCT OR THESE TERMS SHALL NOT EXCEED THE PURCHASE PRICE ACTUALLY PAID BY BUYER FOR THE PRODUCT GIVING RISE TO THE CLAIM.

Article 18. Indemnification

Buyer agrees to indemnify, defend, and hold harmless MCP and its owners, officers, employees, and agents from and against any and all claims, damages, liabilities, losses, costs, and expenses, including reasonable attorneys' fees, arising from or relating to: (a) the delivery, offloading, transport, site preparation, installation, or use of the Product; (b) Buyer's breach of these Terms; (c) Buyer's violation of any law, code, permit requirement, or third-party right; or (d) any act or omission of Buyer or any third party engaged by Buyer, including any carrier, rigger, or installer.

Article 19. Cancellations and Refunds

Deposits are non-refundable, except as expressly provided in Article 12.

Once production of a Pool has begun, the Order is non-cancellable and no refund of any kind will be issued.

Because Pools are made to order, they are not subject to return, exchange, or restocking.

Any refund permitted under these Terms is limited to amounts actually paid by Buyer to MCP and excludes third-party delivery, offloading, financing, or installation costs.

Part V — Media, Intellectual Property, and Data

Article 20. Media and Marketing License

Buyer grants MCP a perpetual, irrevocable, worldwide, royalty-free, fully paid, transferable, and sublicensable license and right to photograph, film, record, reproduce, publish, display, and otherwise use images, video, renderings, and other media depicting the Product and its installation, together with any photographs, videos, reviews, testimonials, comments, or other content Buyer submits to MCP or shares publicly regarding MCP or the Product (collectively, "Marketing Content"), in any and all media now known or later developed, for any purpose, including advertising, marketing, social media, promotion, and MCP's website and portfolio, without further notice, approval, compensation, or attribution to Buyer.

Buyer represents that it has the right to grant this license and to any content it submits, and that such content does not infringe the rights of any third party. To the extent any such media includes Buyer's property, name, likeness, or premises, Buyer consents to its use as described and waives any right to inspect or approve the finished use. MCP will not publish a Buyer's exact street address in marketing materials. This Article survives completion or termination of the Order.

Article 21. Intellectual Property

All designs, molds, tooling, engineering, insulation and fabrication methods, specifications, drawings, renderings, manuals, processes, trademarks, trade names, logos, trade dress, and other intellectual property relating to MCP and its Products are and remain the exclusive property of MCP. Purchase of a Product conveys only the right to use that physical Pool and grants no license to MCP's intellectual property. Buyer shall not copy, reverse engineer, reproduce, manufacture, or create derivative works of any MCP Product, design, or process.

Article 22. Ownership and Use of Data; Privacy

All order data, configuration data, transaction data, and other information generated through Buyer's use of the Website, and all Marketing Content, are owned by MCP, and MCP may use, store, analyze, and commercialize such data in aggregated or de-identified form without restriction. MCP collects and processes personal information provided during the order process, such as name, contact details, delivery information, and payment

information, to fulfill Orders and operate its business. By placing an Order, Buyer consents to MCP's collection and use of such information as described in these Terms and any posted privacy policy. MCP may use service providers, including payment processors and customer relationship and marketing platforms, to process Orders and communicate with Buyer, and may retain transaction records as required for business, legal, and tax purposes.

Part VI — General Legal Terms

Article 23. Force Majeure

MCP shall not be liable or in default for any delay or failure to perform arising from causes beyond its reasonable control, including acts of God, fire, flood, storm, or other severe weather; epidemic, pandemic, or public health emergency; government action, order, embargo, tariff, or restriction; war, terrorism, or civil unrest; labor shortage or dispute; supplier or material shortage; transportation, port, or shipping disruption; or utility or communications failure (each, a "Force Majeure" event). During any Force Majeure event, MCP's performance dates, including estimated ship dates, are extended for the duration of the event, and MCP may allocate production and materials among its customers in any reasonable manner.

Article 24. Electronic Communications and Signatures

Buyer consents to transact electronically and to receive communications, notices, agreements, and records from MCP electronically, including by email and through the Website. Buyer agrees that electronic acceptance, records, and signatures are valid, enforceable, and admissible to the same extent as handwritten signatures and paper records, and waives any objection based on their electronic form.

Article 25. Dispute Resolution; Governing Law; Venue

These Terms and any dispute arising from or relating to them or to any Product are governed by the laws of the State of Kansas, without regard to its conflict of law principles. The parties will first attempt in good faith to resolve any dispute through direct negotiation. Any dispute that cannot be resolved shall be brought exclusively in the state or federal courts located in Leavenworth County, Kansas, and the parties consent to the personal jurisdiction and venue of those courts. Each party waives any right to a trial by jury and waives any right to participate in a class, collective, or representative action. Any claim must be brought within one (1) year after it arose, or it is permanently barred, to the extent permitted by law.

Article 26. General Provisions

Entire Agreement. These Terms, together with the Order and any signed purchase agreement, are the entire agreement between the parties and supersede all prior negotiations, representations, and agreements, whether written or oral.

Amendments. MCP may update these Terms at any time by posting revised Terms on the Website. The Terms in effect when an Order is accepted govern that Order.

Severability. If any provision is unenforceable, the remaining provisions remain in effect and the unenforceable provision is modified to the minimum extent necessary to make it enforceable.

No Waiver. MCP's failure to enforce any provision is not a waiver of its right to do so later.

Assignment. Buyer may not assign these Terms or any Order without MCP's prior written consent. MCP may assign freely.

Survival. Provisions that by their nature should survive, including Articles 14 through 22 and 25, survive completion or termination of the Order.

Article 27. Contact

Questions about these Terms may be directed to: Midwest Container Pools, 22143 219th Street, Leavenworth, KS 66048, phone (913) 704-6316, email Sales@midwestcontainerpools.com.

BY PLACING AN ORDER OR CLICKING TO ACCEPT, BUYER ACKNOWLEDGES THAT BUYER HAS READ AND AGREES TO THESE TERMS AND CONDITIONS OF SALE, INCLUDING THE NON-REFUNDABLE DEPOSIT, THE LIMITATIONS OF LIABILITY, AND THE MEDIA, MARKETING, AND DATA PROVISIONS.